

Second Reading Speech and Doctrine for Defence Cybernetic Integration (Navy) Bill

Legislative and Strategic Package: Defence Cybernetic Integration (Navy) Bill 2025

Second Reading Speech

Introduction and Strategic Context

Honourable Members,

I present to the House the Defence Cybernetic Integration (Navy) Bill 2025-legislation designed to authorise and regulate the integration of **cybernetic consciousness transfer, neurological mapping, and digital embodiment technologies** into the Royal Australian Navy. This bill is a direct response to the strategic, operational, and technological realities shaping Australia's defence landscape in the third decade of the 21st century. It tightly aligns with the National Defence Strategy, the Integrated Investment Program, and the continuous transformation of the Australian Defence Force (ADF) into an integrated, evidence-based and technologically advanced fighting force^[1].

This bill seeks to ensure that the Navy, as a core component of the ADF, remains resilient, operationally supreme, and strategically competitive in a region defined by rapid technological change and intensifying threats. The technological revolution now encompasses more than traditional platforms; it reaches into the domain of cognition, embodiment, and the very identity of the warfighter. Advances in **brain mapping, AI-augmented decision making, uncrewed and autonomous systems, and human-machine teaming**, as well as the nascent but rapidly developing field of consciousness transfer and cybernetic embodiment, necessitate a robust and principled legal framework^{[3][5]}.

Purpose of the Bill

This bill authorises the integration of the most advanced neurotechnologies-**including but not limited to consciousness mapping, cognitive augmentation, and digital embodiment interfaces-into Navy operations, systems, and personnel management**. The intention is threefold:

1. **Enhance operational effectiveness**, especially in environments requiring rapid decision cycles, cognitive resilience, or in scenarios where physical or cognitive continuity across platforms is vital (e.g., submarine command continuity).

2. **Increase personnel resilience** by equipping Navy personnel, both uniformed and civilian, with augmentation tools and therapies (e.g., digital embodiment platforms for injured or transitioning members, or advanced trauma therapy via immersive neurotechnological interventions).
 3. **Advance national defence and security** by giving Australia a leading edge in the contested domains of cyber, cognitive warfare, and autonomous operations, and by credibly deterring adversaries in a digitally complex battlespace^[2].
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Strategic Rationale

Australia confronts a regional environment complicated by technological acceleration, “grey zone” conflict, and the weaponization of data, cognition, and autonomy^[7]. Cognitive warfare, now officially recognised as a domain of contestation by the ADF Cyber Command, has become a necessary area of focus. Our potential adversaries are investing in neurotechnology, brain-computer interfaces, and autonomous systems as force multipliers. Australia must innovate not only to maintain a credible deterrent, but also to protect our people against the psychological and information threats of modern conflict.

Integration of cybernetic and digital embodiment capabilities will:

- Provide **continuity of command and decision advantage** in heavily contested, isolated, or communications-denied environments-especially for submarine operations where loss of command personnel threatens mission viability^[8].
 - Enable **shipboard augmentation** that reduces physical and psychological stress (via assistive exoskeletons, digital twins, and immersive training or therapy protocols) and supports inclusive participation for personnel with disabilities or injuries^[10].
 - Support **autonomous and uncrewed system resilience**, leveraging digital embodiment to enable remote presence, ethical oversight, or emergency re-embodiment if a platform becomes isolated or compromised^[11].
 - Facilitate **advanced personnel resilience protocols** (e.g., rapid PTSD therapy, AI-augmented trauma processing, digital embodiment employment for injured sailors), ensuring ADF people remain effective and supported^[13].
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Legal Safeguards and Interaction with Existing Laws

Honourable Members, the gravity of integrating cybernetic consciousness technologies into human warfighters-indeed, into the legal category of the “person” itself-necessitates robust, codified legal safeguards:

- The bill mandates **informed consent, oversight, and revocability** for all invasive neurotechnological interventions, except under tightly prescribed operational emergency protocols.

- It establishes a **Cybernetic Oversight Board**, with statutory independence. This body includes representatives from the Department of Defence, human rights authorities, medical ethics specialists, and legally trained observers.
 - All data acquired through consciousness mapping, neurological imaging, and digital embodiment interfaces will be protected under expanded privacy legislation. The new statutory tort for serious invasions of privacy, effective June 2025, is explicitly extended to cover neurodata and digital mind instances^[15].
 - Any use of digital embodiment or consciousness transfer for operational purposes will be subject to **Article 36 review under the Geneva Conventions**, and to Australian domestic legal obligations on weapons, privacy, and human rights^[16].
 - The bill's implementation is designed to harmonise with the Defence Act 1903, the Cyber Security Act 2024, amendments under Safeguarding Australia's Military Secrets (SAMS), and emerging neurotechnology law frameworks^{[18][15]}.
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Ethical Considerations

Military human augmentation, digital embodiment, and neurotechnology introduce profound **ethical questions on autonomy, identity, consent, and justice**^[20]. The bill's ethical architecture is informed by current ADF doctrine, international human rights law, Australian Army and Navy ethical research, and global best practice:

- **Voluntary versus compulsory augmentation** is tightly controlled. Routine operational use of intrusive neurotechnology is only permitted with explicit, recorded consent.
 - All personnel are provided with **independent advocacy** to ensure full understanding of potential benefits and risks.
 - The capacity for digital embodiment or consciousness transfer is not to be used for disciplinary purposes, or as a functional replacement for physical personnel, except in strict accordance with operational continuity doctrine.
 - **Augmented personnel** are guaranteed protections for their post-service identity, support for "de-augmentation," and access to veteran rehabilitation services.
 - **Command clarity and legal responsibility** are explicitly retained for any operational decision, regardless of human, augmented, or digital decision-makers^[20].
 - The legislation includes requirements for regular Parliamentary review and public reporting (with appropriate classification protections) to ensure continued ethical legitimacy.
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Conclusion

In sum, the Defence Cybernetic Integration (Navy) Bill 2025 does not embark lightly on the integration of potentially world-changing technologies. It provides a careful, evidence-based, and ethically robust legislative framework, designed to ensure the Navy's competitiveness,

resilience, and human dignity. This Bill will ensure that Australia is not compelled to accept foreign legal or technical standards, nor compelled to import incomplete, insecure, or unethical practices. Instead, it will enable us to lead, innovate, and protect.
I commend the Bill to the House.

Explanatory Memorandum

Overview

This Explanatory Memorandum provides a comprehensive explanation of the Defence Cybernetic Integration (Navy) Bill 2025, detailing the intent, operation, and effect of each clause, as well as the interaction of the Bill with existing legal frameworks and standards^[22].

Background

The Defence Cybernetic Integration (Navy) Bill 2025 is the product of consultations across operational, legal, medical, ethical, and technical domains. It implements core defence capability outcomes identified in the National Defence Strategy, meets the requirements for technology innovation set out in the Integrated Investment Program, and aligns with emerging global standards on human augmentation, cyber-physical systems, and neurotechnology oversight^[1].

Clause-by-Clause Analysis

Clause	Title	Purpose and Interaction
1	Short Title	Provides for the Bill to be cited as the Defence Cybernetic Integration (Navy) Act 2025.
2	Commencement	Enables the Act to commence on Royal Assent, with staged introduction for different sections by Proclamation.
3	Definitions	Defines key terms, including “cybernetic consciousness transfer”, “neurological mapping”, “digital embodiment”, “operational augmentation”, and “personal digital twin”. Filled by cross-reference to Act, ADF, and Defence Act definitions where appropriate ^[17] .
4	Objects of the Act	Outlines the Act’s objectives: enhancement of operational capability, personnel resilience, national security, and assurance of ethical and legal conformity.

5	Authorisation for Operational Integration	Provides legal authorisation for the Navy to implement approved cybernetic, neurotechnological and digital embodiment technologies. Interacts with the Defence Act 1903 to clarify that these measures are lawful military activity ^[23] .
6	Scope of Technologies	Lists and defines the authorised technologies- consciousness transfer, embodiment platforms, neural mapping, exoskeletal augmentation, shipboard digital twins, and related AI systems. All deployments require risk review in accordance with the Defence Digital Engineering Roadmap and cybersecurity standards ^[11] .
7	Consent and Autonomy Provisions	Stipulates that, except for defined operational emergencies, all augmentation or consciousness transfer programs require fully informed, revocable consent. Establishes documentation and recording requirements consistent with privacy law and ADF personnel policies. Refers to expanded Privacy Act tort for serious invasions of privacy and neurodata ^[15] .
8	Oversight Mechanisms	Establishes an independent Cybernetic Oversight Board with statutory authority to review, audit, and investigate all Navy consciousness transfer and digital embodiment activities. Requires at least annual reporting to the Minister and Parliament (classified or summarised as operational security requires).
9	Use and Handling of Neurodata	Categorizes neurodata, consciousness maps, and digital embodiment data as highly sensitive Defence data, subject to existing Defence data protection standards, with additional limitations drawn from the Cyber Security Act 2024 and emerging neurotechnology frameworks. Explicitly applies the statutory tort for privacy invasions and outlines chain-of-custody requirements.
10	Legal Status of Embodied and Augmented Persons	Explicitly declares that personnel in digital embodiment or cybernetic consciousness transfer status retain their legal identity and responsibility as ADF members. Governs succession, legal authority, and mission command during digital or hybrid embodiment.

11	Implementation Requirements	Requires detailed doctrine, standing orders, and platform-specific risk assessments prior to operational deployment. Mandates compliance with the Australian Naval Classification Rules for autonomous and remote systems, with legal reviews under Article 36 and Geneva Conventions for any changes to system lethality, autonomy, or targeting capabilities ^[1] .
12	Post-Service Provisions	Requires the ADF to provide de-augmentation options, ongoing healthcare, and personal data management for veterans who have undergone any form of consciousness mapping or augmentation. Ensures rehabilitation and privacy guarantees for “decommissioned” digital embodiment files, and access to veteran support services ^[16] .
13	Parliamentary and Public Reporting	Establishes regular reporting requirements, with appropriate national security classification, to both Parliament and the public. Reports must address legal, ethical, operational, and technological outcomes, as well as recommendations for reform, transparency, and continual improvement.
14	Regulations and Standards	Authorises the making of regulations for operational standards, consent protocols, data management, risk assessment, and alignment with domestic and international law. Mandates that any significant update to standards or regulations be tabled in Parliament and undergo Article 36 legal review for weapons or operational doctrine changes.
15	Transitional Provisions	Sets out transitional arrangements for integrating existing R&D projects into the new regime and establishes sunset provisions for legacy programs.
16	Review of Act	Requires a Parliamentary and independent review of the Act and its effects at three, five, and ten-year intervals from commencement.

Clause-by-Clause Detail and Context

Clauses 1-2 (Short Title, Commencement)

Standard legislative provisions. The staged commencement harnesses capability development cycles and ensures readiness to implement different classes of technology, with Horizons 1-3 as defined in strategic integration documents.

Clause 3 (Definitions)

Carefully drafted to ensure consistency with ADF doctrine, legal principles, and the field's technological terminology. The concept of **"cybernetic consciousness transfer"** refers to systems that enable the mapping, extraction, encoding, and re-instatement of a service member's cognitive, mnemonic, and executive neurological patterns, potentially into digital or hybrid platforms. **"Digital embodiment"** is defined as any virtual or cyber-physical instantiation of a warfighter's identity for operational purposes. These definitions harmonise with international and Australian cyber, privacy, and neurotechnology laws^{[24][25]}.

Clause 4 (Objects)

The bill's stated objectives are operational superiority, personnel protection, ethical leadership, and legal compliance. This global framing is essential for regulatory clarity and helps ensure legal defensibility and transparency^[1].

Clause 5-6 (Authorisation, Scope)

Clauses 5 and 6 are pivotal. They authorise the Navy to proceed with programs in tightly defined technology classes. This overt legal authority enables the clear and confident adoption of both current and anticipated future technologies. These provisions interact with existing ADF capability statutes and supplement the Defence Act 1903, extending legal coverage for forms of "military service" that transcend traditional embodiment^[23].

Clause 7 (Consent & Autonomy)

Ensures the paramountcy of **voluntary, informed, and revocable consent** for any form of neurological intervention or consciousness transfer, in line with best ethical practice and privacy law developments. Emergency exceptions must be documented, independently monitored, and subsequently reviewed. The clause references the new statutory tort for privacy invasion, expressly requiring that neurodata be treated as the most sensitive class of personal data, subject to audit and liability for breach^[15].

Clause 8 (Oversight)

The Cybernetic Oversight Board is modelled on precedents for independent statutory oversight in sensitive Defence domains (e.g., the Inspector-General of the ADF, the Australian Naval Nuclear Power Safety Regulator, and Parliamentary committees with clearance for classified material)^[26]. The Board ensures scrutiny, transparency, and the ability to respond rapidly to emerging concerns in a space of high public trust and risk.

Clause 9 (Neurodata Handling)

Aims to bridge statutory data privacy with evolving neuro-rights and to reinforce the "limited-use" safeguards familiar from the Cyber Security Act 2024 and similar international statutes^[27]. Chain-of-custody and audit rules are prescriptive, reflecting the vital status of neurodata-not just for individual privacy, but for national security (to prevent deliberate or accidental adversarial access).

Clause 10 (Legal Status)

Clarifies that digitally embodied, cybernetically transferred, or otherwise augmented ADF members retain their status, rights, and obligations as personnel. Legal authority and accountability for operational actions remain fully identified and non-transferable, addressing core concerns in military law and executive decision-making.

Clause 11 (Implementation)

Requires that all implementations are risk assessed, platform-tailored, and compliant with class-specific naval standards-using Division 5 of the ANC Rules for remote and autonomous vessels as an exemplar of “fit for purpose” technical regulation^[11]. All potentially lethal or autonomous operational functions introduced or altered by cybernetic or digital embodiment integration are mapped to international humanitarian law review and regulatory authority (Article 36, Geneva)^[16].

Clause 12 (Post-Service)

Reflects ethical and policy concerns regarding the long-term rights, obligations, and welfare of augmented or digitally embodied personnel-especially their privacy, psychological health, and status in civilian life. Ensures robust transition, ongoing support from Defence health and veterans’ affairs services, and data minimization for decommissioned augmentations or digital instances^[12].

Clause 13 (Reporting)

Mandates regular (annual or as otherwise directed) reporting to Parliament and the public, covering capability, legal, ethical, and operational results. The privacy and protectiveness of the reporting are ensured by reference to the Defence Amendment (Parliamentary Joint Committee on Defence) Bill 2024 protocols for classified information disclosure^[1].

Clause 14 (Regulations and Standards)

Empowers the making of detailed, adaptive regulations-recognising that technology, risks, and best practices will evolve rapidly. Requires notification and review of significant changes, with Article 36 review for potential emerging weapon or operational doctrine shifts.

Clause 15-16 (Transitional, Review)

Ensures sustainable transition from experimentation to capability and mandates periodic Parliamentary and independent review to provide long-term accountability and flexibility.

Relationship with Existing Law

This Act is designed to operate harmoniously with:

- The **Defence Act 1903**-which provides general legal authority for ADF operations, now expanded to cover cybernetic and neurotechnological functions^[23].

- The **Cyber Security Act 2024**-notably its limitations on information use/disclosure, incident reporting, and establishment of a statutory Expert Board for oversight, which serve as clear precedents for managing sensitive digital and neurodata^[18].
 - **Safeguarding Australia's Military Secrets (SAMS)**-which constrains unauthorised sharing of Defence knowledge and skills with foreign entities; this bill ensures such protections apply with specific reference to neural, cognitive, and embodiment data streams, reflecting their national security sensitivity^[28].
 - The new **statutory tort for serious invasions of privacy/accountability for neurodata**^[14].
 - International instruments, including **Geneva Convention Article 36** for legal review of new weapons and means of warfare^[1].
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Operational Doctrine Brief

Introduction

The following section provides Navy doctrine on implementing cybernetic integration across submarine command continuity, shipboard augmentation, and autonomous maritime operations, in alignment with the new legislation and strategic guidance^[1].

Operational Priorities and Rationale

Strategic Priorities

The Navy's operational doctrine for cybernetic integration is guided by five strategic imperatives, consistent with the 2024 National Defence Strategy, the Defence Digital Engineering Roadmap, and the RAS-AI Campaign Plan 2025^[1]:

1. **Command Continuity and Decision Advantage:** Maintaining operational capability through continuity of command and decision processes, especially in submarines or denied environments.
2. **Human-Machine Teaming and Shipboard Augmentation:** Enhancing sailor effectiveness, inclusivity, and safety through assistive technologies, digital twins, exoskeletons, and human-machine teaming platforms^{[3][9]}.
3. **Autonomous and Uncrewed Maritime Operations:** Expanding force disposition and risk tolerance by enabling robust, ethical control and mission oversight over autonomous systems and digital agents^[30].
4. **Force Resilience:** Providing evidence-based trauma therapy, cognitive regeneration, and composite operational resilience capabilities for both uniformed and civilian personnel^[13].
5. **Continuity with Law, Ethics, and Alliance Standards:** Ensuring interoperability, legal legitimacy, and shared ethical frameworks with AUKUS partners, NATO, and other trusted allies^{[7][1]}.

Detailed Implementation Pathways

1. Submarine Command Continuity

Doctrinal Concept:

The doctrine prescribes that, in extreme circumstances such as command incapacitation, emergent threat, or severe isolation, approved Navy personnel may have their cognitive patterns and decision frameworks mapped and re-instantiated in authorised digital embodiment systems aboard the submarine or at a remote secure command site. This allows for:

- Rapid reconstitution of command authority by digital embodiment, minimising operational breakdown.
- Use of “mission continuity modules”-secure, digitally-embodied command agents, drawn from mapped real-time cognitive states of current commanders, cross-referenced with expert support AI and mission parameters^[31].
- Digital fallback to a remote command team, utilising high-latency secure comms if platform isolation is detected.

Legal/Ethical Cautions:

- Deployment only in dire operational need, with required audit, documented after-action review, and strict privacy restrictions.
- Digital instantiation does not supersede chain of command or legal/ethical accountability. All orders, decisions, and mission actions remain attributable to the legal person of record.

2. Shipboard Augmentation Systems

Doctrinal Concept:

Adopt exoskeletons, digital twins, cognitive augmentation headsets, and hybrid virtual training environments for shipboard use in:

- Heavy lifting and maintenance roles-using powered exoskeletons modelled on those trialled at Naval Group/Flinders University and Norfolk Naval Shipyard^[10].
- Bridge and operations room-digital twins to “shadow” command, enhance situational awareness, and provide real-time decision support and training via AR/VR overlay, in line with the Defence Digital Engineering roadmap and Division 5 (ANC) rules on host platform integration^[11].
- Trauma/mental health support in-theatre, including rapid PTSD mitigation leveraging immersive exposure, 3MDR, EMDR, VR, and AI-guided therapy protocols^[13].
- Personnel inclusion-assistive or replacement digital embodiment (e.g., virtual presence for injured or remote sailors)-enabling continuous engagement with command, training, and personnel support functions.

- “Digital presence officers” to provide continuity of shipboard culture and command through digitally embodied avatars, acting as morale and operational continuity assets.

Ethical/Lawful Use:

- Augmentation is voluntary, with full informed consent and tailored to individual cognitive/physical profiles, per ADF guidelines.
 - Ethical scrutiny and advocacy provided before, during, and after augmentation, with ongoing monitoring for adverse effects on morale or command legitimacy.
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3. Autonomous Maritime Operations

Doctrinal Concept:

Expand Navy’s surface and undersea presence via coordinated, cybernetically-supervised uncrewed surface vessels (USVs) and autonomous underwater vehicles (AUVs), operating under the following tenets:

- Deploy digital embodiment of trained Navy operators in supervisory “hyper-teaming” stations, enabling multiple autonomous assets per human overseer^[3].
- Use secure, sovereignty-tested control interfaces with “last-man override” capability, per Division 5 of ANC Rules and guidance from the Defence Digital Engineering Roadmap^[11].
- Integrate resilient AI-driven decision-support, linked to digital twins of valid ADF doctrine, tactical memory banks, and ethical rules of engagement.
- Enable emergency digital “takeover” by rating-appropriate personnel if platforms detect adversarial threat/emergency (e.g., hijack, electronic warfare denial, or loss of onboard rosters).

Safety/Lawful Use:

- Regular cross-check against Geneva Conventions Article 36 reviews for any new autonomy, weaponry, or targeting logic. All lethal decisions require human-in-the-loop confirmation except when explicitly covered by legal/ethical provisions for ongoing missions under duress^[1].
 - Regular external audit and peer review of autonomy and digital embodiment platforms.
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4. Personnel Resilience and Support

Doctrinal Concept:

Cybernetic, digital, and neurotechnological tools will be deployed across Navy for:

- Rapid mental health assessment, real-time AI- or VR-augmented therapy, portable resilience support for deployment in operations or at sea^[13].
- Digital embodiment for wounded, convalescent, or otherwise transition-supporting applications. Includes “virtual deployments” and remote participation in command, administration, and unit culture.

- Routine mental health monitoring (with consent) via wearables and neurodata, linked to privacy-protected Defence health files.
- Veterans' support for de-augmentation and digital presence employment (including legal support for digital embodiment retirement and data erasure).

5. Continuous Review, Interoperability, and Innovation

Doctrinal Concept:

Implementation programs are to be:

- Iterative, subject to continuous adaptation as capability develops, per RAS-AI "evergreening" and Digital Engineering Roadmap models.
 - Networked to robust industry/academic partnerships with strict security and sovereignty processes.
 - Linked with AUKUS and allied legal/ethical regimes to assure interoperability and shared governance, contributing to the coalition-wide body of knowledge and best practice^[32].
 - All doctrine is regularly tested and updated through classified operational reviews and open/coalition experimentation where appropriate.
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Command, Responsibility, and Legal/Ethical Accountability

- Chain of command, legal status, and personal responsibility remain continuous and identifiable, regardless of embodiment, augmentation, or operational status.
 - No augmentation is compulsory, except under explicit and extreme operational provisions governed by the law and doctrine.
 - Moral and legal responsibility for operational acts (including acts taken in digital embodiment) are the responsibility of the legal service member, not the software, platform, or AI system^[20].
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Summary Table - Integration Pathways

Operational Domain	Cybernetic System	Key Safeguards and Doctrine
Submarine Command Continuity	Digital embodiment fallback modules	Emergency use only, legal/ethical review
Shipboard Augmentation	Exoskeletons, digital twins, AR/VR	Voluntary, monitored, inclusive
Autonomous Maritime Ops	Digital overseer, hyper-teaming	Human oversight, legal review, security

Personnel Resilience	AI trauma therapy, digital twins	Informed consent, privacy, veteran care
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Explanation:

This table summarises the operational contexts for cybernetic integration, the main technologies involved, and the core legal/ethical doctrine framing each category.

Safeguards for Command Continuity in Submarines

Submarine operations pose unique risks of isolation, critical command loss, and adversarial threat. The doctrine prescribes an escalating protocol: initial local action, escalation to digital embodiment authority only if command incapacitation is clearly documented, then immediate post-event audit, with all actions logged, encrypted, and independently audited. Digital command is limited in duration and scope, and must fall back to human authority as soon as possible^[8].

Standards and Review

All cybernetic integration must conform to:

- **Division 5 ANC Rules** for remote/autonomous naval platforms^[11];
- **Defence Digital Engineering Roadmap** for documentation, risk management, and cyber-resilience of digital twin and embodiment systems;
- **ADF Doctrine hierarchy** (Capstone, Philosophical, Integration, Application levels)^[29].

Regular reporting and oversight is assured by the Cybernetic Oversight Board and through Parliamentary accountability as mandated in clauses 8 and 13 of the Bill.

Conclusion

The Defence Cybernetic Integration (Navy) Bill 2025, with its supporting Explanatory Memorandum and doctrine, sets the gold standard in aligning **operational necessity, technological innovation, individual rights, and ethical responsibility**. It provides the Navy with the statutory and doctrinal backbone to lead Defence in the era of human-cybernetic integration-maximising operational advantage while upholding Australian values and legal obligations.

A practical, phased, and ethically robust pathway is set-balancing resilience, sovereignty, responsible innovation, and trust in the human heart of the Navy.

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